

HOUSE No. 1142

The Commonwealth of Massachusetts

PRESENTED BY:

Paul J. Donato

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote increased access to patient care through equitable reimbursement.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 1142

By Representative Donato of Medford, a petition (accompanied by bill, House, No. 1142) of Paul J. Donato relative to reimbursements for patient care. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote increased access to patient care through equitable reimbursement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, as appearing in the 2024 Official
2 Edition, is hereby amended by adding the following new section:—

3 Section 34. (a) Coverage offered by the commission to an active or retired employee of
4 the commonwealth insured under the commission shall not make a distinction, for the purposes
5 of participation, coverage, and payment, between physicians licensed pursuant to chapter 112
6 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing
7 role pursuant to section 80B of chapter 112, if the physician or certified registered nurse
8 anesthetist is acting within the scope of their practice pursuant to their licensure and certification.
9 Nothing in this subsection shall prevent the commission from establishing varying
10 reimbursement rates based on quality or performance measures if such measures are the same for
11 physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized
12 to practice in advanced practice nursing roles pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) (1) The commission shall reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that the commissioner would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112.

(2) The commission may not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this subsection.

SECTION 2. Section 6 of chapter 118E of the General Laws, as so appearing, is hereby amended by inserting in line ___ after the words “board-certified physicians”, the following:—

, certified registered nurse anesthetists,

SECTION 3. Chapter 118E of the General Laws, as so appearing, is hereby amended by adding the following section:—

Section 83. (a) The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid-managed care organization, accountable care organization, or primary care clinician plan shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this

subsection shall prevent the commission from establishing varying reimbursement rates based on quality or performance measures if such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in advanced practice nursing roles pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) The division and its contracted entities shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this subsection.

SECTION 4. Chapter 175 of the General Laws, as so appearing, is hereby amended by inserting after section 108N the following section:—

Section 108O. (a) An individual policy of accident and sickness insurance issued under section 108 that provides hospital expense and surgical expense insurance and any group blanket or general policy of accident and sickness insurance issued under section 110 that provides hospital expense and surgical expense insurance that is issued or renewed within or without the commonwealth shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting within the scope

of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commission from establishing varying reimbursement rates based on quality or performance measures as long as such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) An individual policy of accident and sickness insurance issued under section 108 that provides hospital expense and surgical expense insurance and any group blanket or general policy of accident and sickness insurance issued under section 110 that provides hospital expense and surgical expense insurance that is issued or renewed within or without the commonwealth shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

SECTION 5. Chapter 176A of the General Laws, as so appearing, is hereby amended by adding the following section:—

Section 39. Any contract between a subscriber and a corporation under an individual or group hospital service plan delivered, issued or renewed within the commonwealth shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians

licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commission from establishing varying reimbursement rates based on quality or performance measures if such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) Any contract between a subscriber and a corporation under an individual or group hospital service plan delivered, issued or renewed within the commonwealth shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

SECTION 6. Section 1 of chapter 176B of the General Laws, as so appearing, is hereby amended by inserting after the definition of "Certified nurse midwife", the following definition:—

“Certified registered nurse anesthetist”, a registered nurse who is authorized to practice in an advanced practice nursing role as a certified registered nurse anesthetist pursuant to section 80B of chapter 112.

SECTION 7. Section 1 of said chapter 176B is hereby further amended by inserting after “physicians” in the definition of “Medical service” the following:—

or certified registered nurse anesthetists

SECTION 8. Section 1 of said chapter 176B is further amended by inserting, after the definition of “Nonprofit medical service plan”, the following definition:—

“Participating certified registered nurse anesthetist”, a certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, and who agrees in writing with a medical service corporation to perform medical services for subscribers and covered dependents and to abide by the by-laws, rules and regulations of such corporation.

SECTION 9. Said chapter 176B is further amended in section 4T by striking out, wherever they appear, the words “certified registered nurse anesthetist or”.

SECTION 10. Said chapter 176B is hereby further amended by adding the following section:—

Section 26. A contract between a subscriber and a medical service corporation shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or

certified registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commission from establishing varying reimbursement rates based on quality or performance measures if such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to said section 80B.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) A contract between a subscriber and a medical service corporation shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

SECTION 11. Section 1 of chapter 176G of the General Laws, as so appearing, is hereby amended by inserting the following definition:—

“Certified registered nurse anesthetist”, A certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112.

SECTION 12. Section 1 of said chapter 176G is hereby further amended by inserting after the word “physician”, in the definition of “Health services”, the following:—

or certified registered nurse anesthetist

SECTION 13. Chapter 176G of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 34. A contract between a member and a health maintenance organization shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of chapter 112, if the physician or certified registered nurse anesthetist is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commission from establishing varying reimbursement rates based on quality or performance measures as long as such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to said section 80B

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or certified registered nurse anesthetist who provided the service.

(c) A contract between a member and a health maintenance organization shall: (i) reimburse a contracted certified registered nurse anesthetist who is authorized to practice in an advanced practice nursing role pursuant to said section 80B in an amount not less than the allowed amount that it would reimburse for the same service if provided by a contracted provider who is a physician licensed pursuant to chapter 112; and (ii) not reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with this section.

SECTION 14. Chapter 176G of the General Laws is hereby further amended by adding the following section:—

Section 35. When a law or rule requires authorization or involvement of a physician as a condition of reimbursement or coverage of anesthesia services, that requirement may be fulfilled by a certified registered nurse anesthetist practicing in an advanced practice role under section 80B of chapter 112.

SECTION 15. Chapter 176I of the General Laws is hereby amended by adding the following section:-

Section 14. A preferred provider contract between a covered person and an organization shall not make a distinction, for the purposes of participation, coverage, and payment, between physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists authorized to practice in an advanced practice nursing role pursuant to section 80B of said chapter 112, if the physician or advanced practice registered nurse is acting within the scope of their practice pursuant to their licensure and certification. Nothing in this subsection shall prevent the commission from establishing varying reimbursement rates based on quality or performance measures as long as such measures are the same for physicians licensed pursuant to chapter 112 and certified registered nurse anesthetists practicing authorized to practice in an advanced practice nursing role pursuant to section 80B of said chapter 112.

(b) A claim submitted for payment must identify the National Provider Identifier of the physician or advanced practice registered nurse who provided the service.

(c) A preferred provider arrangement between a covered person and an organization shall: (i) reimburse a preferred provider certified registered nurse anesthetist who is authorized to

183 practice in an advanced practice nursing role pursuant to section 80B of chapter 112 in an
184 amount not less than the allowed amount that it would reimburse for the same service if provided
185 by a preferred provider who is a physician licensed pursuant to said chapter 112; and (ii) not
186 reduce the reimbursement amount paid to physicians licensed under chapter 112 to comply with
187 this section.